

25STCV06512 25STCV06512

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-30

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Case Number: 25STCV06512 Hearing Date: July 30, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:25 PM on July 29, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 29, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Defendant argues that he was

terminated because he is black, but the pretext was that he entered into a contract with a company in which Plaintiff and his wife have interests.

Defendants Unbounded Learning Inc.

and Consortium on Reaching Excellence In Education Inc. move to compel arbitration.

TENTATIVE RULING

Defendants

Unbounded Learning Inc. and Consortium on Reaching Excellence In Education Inc.'s motion to compel arbitration is GRANTED. The case is ordered stayed pending arbitration. (Code Civ. Proc., § 1281.4.) The Court sets a status conference re: arbitration for January 25, 2027 at 8:30 a.m. Status conference briefs are due 7 days prior.

ANALYSIS

Motion To Compel Arbitration and Stay Action

Discussion

Defendants Unbounded Learning Inc.

and Consortium on Reaching Excellence In Education Inc. move to compel arbitration.

Existence

of Agreement To Arbitrate

Under

California law, arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract. (Blake v. Ecker (2001) 93

Cal.App.4th 728, 741 overruled on other grounds by Le Francois v. Goel (2005) 35 Cal.4th 1094.) A

party petitioning to compel arbitration has the burden of establishing the

existence of a valid agreement to arbitrate and the party opposing the petition

has the burden of proving, by a preponderance of the evidence, any fact

necessary to its defense. (Banner

Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 356-57.)

Defendants

present the arbitration agreement in a document entitled "UNBOUNDED LEARNING, INC. Inventions, Non-Disclosure and Non-Solicitation Agreement." The Agreement is dated February 27, 2023 and entered into between UnboundEd Learning, Inc. as

Company and Plaintiff Robert Sheffield as employee.

The

arbitration provision is found at ¶ 5 as follows:

(a) Except as

provided in section 5(b) below, I agree that any dispute or controversy arising out of or relating to any interpretation, construction, performance or breach of this agreement, or relating to my employment with the company (including compensation) or termination therefrom, shall be settled by arbitration to be held in New York, New York, in accordance with the employment arbitration rules of the American Arbitration Association before a single arbitrator who shall have experience in the area of the matter in dispute. The arbitrator may grant relief in the nature of injunctions or other relief in such dispute or controversy. The decision of the arbitrator shall be final, conclusive and binding on the parties. Judgment may be entered on the arbitrator's decision in any court having jurisdiction. The Company and I will each pay one-half of the costs and expenses of such arbitration unless the arbitrator orders otherwise, and each of the Company and I will separately pay our own counsel fees and expenses and other costs of the arbitration. I understand and acknowledge that by agreeing to the arbitration provisions I have waived the right to a trial by jury.

(Maltes Decl., Exh. A; Agreement,

¶ 5(a) [bold emphasis added].)

Per

the Declaration of Nathan Maltes:

4. Following

months of corporate acquisition activities, on September 12, 2022, UnboundEd finalized their acquisition of all the stock for CORE. Also on September 12, 2022, Plaintiff Robert Sheffield entered into an agreement with CORE stating that his employment would be retained. Per this agreement, Mr. Sheffield retained his role as President of CORE in addition to establishing his role as Chief Growth Officer of UnboundEd.

Indeed,

Plaintiff alleges at ¶ 4 of the Complaint that UEL acquired CORE in 2023 and merged into a single business. As such, Plaintiff is estopped from denying that

CORE is entitled to enforce the arbitration agreement.

"Nonsignatory defendants may enforce arbitration agreements 'where there is sufficient identity of parties.' [Citation.] Enforcement is permitted where the nonsignatory is the agent for a party to the arbitration agreement [citation], or the nonsignatory is a third party beneficiary

of the agreement [*9] [citation]. In addition, a nonsignatory may enforce an arbitration agreement under the doctrine of equitable

estoppel. The doctrine applies where, for example, a signatory plaintiff sues a nonsignatory defendant for claims that are based on an underlying contract. In such instance, the plaintiff may be equitably estopped to deny the nonsignatory defendant's right to enforce an arbitration clause that is contained within the contract that the plaintiff has placed at issue." (Marenco, supra, 233 Cal.App.4th at p. 1417.)

(Jenks v. DLA Piper Rudnick Gray Cary US LLP (2015) 243 Cal.App.4th 1, 8-9.)

Plaintiff's signature appears on the agreement. Plaintiff asserts three cause of action: breach of contract, breach of the duty of good faith and fair dealing and wrongful termination. All of these are common law causes of action. As such, the Court need not address the Armendariz factors because those only apply where a party seeks to arbitrate nonwaivable statutory rights in the workplace (Fitz v. NCR Corp. (2004) 118 Cal.App.4th 702, 711-12)

The Court finds that Defendants are entitled to enforce the arbitration agreements as to the claims asserted in the Complaint. The burden shifts to Plaintiff to demonstrate that the arbitration agreement is unenforceable.

In failing to file an opposition, Plaintiff has failed to demonstrate that the arbitration agreement should not be enforced.

As such, the motion to compel arbitration is GRANTED. The case is ordered stayed pending arbitration. (Code Civ. Proc., § 1281.4.) The Court sets a status conference re: arbitration for

January 25, 2027 at 8:30 a.m. Status conference briefs are due 7 days prior.